

SERVICE LEVEL AGREEMENT FOR ANNUAL MAINTENANCE AND SUPPORT SERVICES

Contract Reference No: SLA/2024/IT/001

This Service Level Agreement (the "Agreement") is made on 1st day of April 2024 between

TechServe Solutions Private Limited, having its registered office at
Plot No. 45, MIDC Industrial Area, Pune, Maharashtra - 411019
(hereinafter referred to as "Supplier" or "Vendor")

AND

National Infrastructure Development Corporation Limited (NIDC),
having its registered office at 12th Floor, Scope Minar, Laxmi Nagar,
New Delhi - 110092
(hereinafter referred to as "Employer" or "Client")

1. CONTRACT VALUE AND DURATION

1.1 Total Contract Value: Rs. 2,40,00,000 (Rupees Two Crores Forty Lakhs Only)
for the full 3-year service period.

1.2 Annual Contract Value: Rs. 80,00,000 (Rupees Eighty Lakhs) per year.

1.3 Contract Duration: 3 (Three) years from the date of commencement,
i.e., from 1st April 2024 to 31st March 2027.

1.4 Extension Clause: The contract may be extended by 1 year on mutual agreement,
at the same rates, subject to satisfactory performance.

2. PAYMENT TERMS

2.1 Advance Payment: 15% of the annual contract value (Rs. 12,00,000) shall be
paid as mobilization advance within 30 days of contract signing, against
submission of Bank Guarantee of equivalent amount.

2.2 Quarterly Payments: Remaining 85% shall be paid on a quarterly basis
(Rs. 17,00,000 per quarter) within 30 days of invoice submission.

2.3 Payment Cycle: Net 30 days from the date of invoice submission.

2.4 Total Payment Breakdown: 15% mobilization advance + 85% quarterly payments.

2.5 Retention: 5% of each quarterly invoice shall be withheld as retention money and shall be released within 60 days after expiry of the Defect Liability Period.

2.6 Retention Duration: Retention money shall be held for 12 months after contract completion or expiry of DLP, whichever is later.

3. DEPOSITS AND SECURITY

3.1 Earnest Money Deposit (EMD): Rs. 2,40,000 (Rupees Two Lakhs Forty Thousand Only), being 1% of total contract value, submitted as Demand Draft in favour of NIDC.

3.2 Performance Bank Guarantee (Security Deposit): The Vendor shall furnish a Performance Bank Guarantee of Rs. 16,00,000 (Rupees Sixteen Lakhs), being 20% of the annual contract value, within 15 days of award of contract. The Performance Bank Guarantee shall remain valid for the entire contract period plus 6 months.

4. SCOPE OF WORK

4.1 The Vendor shall provide comprehensive IT infrastructure maintenance services including servers, networking equipment, storage systems, and end-user devices at NIDC headquarters and 5 regional offices.

4.2 Services include:

- a) Preventive Maintenance: Quarterly scheduled maintenance visits
- b) Corrective Maintenance: On-call support for faults and failures
- c) Remote Monitoring: 24x7x365 monitoring of all critical systems
- d) Annual Comprehensive Audit: Full IT infrastructure audit every year
- e) Software Updates: Regular patches and firmware updates
- f) Spare Parts Management: Maintain critical spares inventory at site

5. SERVICE LEVEL OBJECTIVES

5.1 System Availability: The Vendor guarantees minimum uptime of 99.5% for all critical systems on a monthly basis.

5.2 Availability Target: 99.5% monthly availability for servers and network equipment.

5.3 Response Time: The Vendor shall initiate response within 2 hours of fault notification for critical issues (24x7x365).
For non-critical issues, response time shall be within 8 business hours.

5.4 Resolution Time:
Critical faults: Resolution within 24 hours of fault notification.
Major faults: Resolution within 48 hours of fault notification.
Minor faults: Resolution within 5 business days.

5.5 Preventive Maintenance Frequency: Quarterly on-site preventive maintenance visits (minimum 4 visits per year).

5.6 EMS/Monitoring Uptime: Remote monitoring system shall maintain 99% uptime on a monthly basis.

6. PENALTIES AND LIQUIDATED DAMAGES

6.1 Delay Penalty: In case of delay in commencement of services, a penalty of 0.5% of the annual contract value per week of delay shall be levied on the Vendor.

6.2 Availability Penalty: If monthly system availability falls below 99.5%, the following liquidated damages shall apply:

- Below 99.5% to 99.0%: Rs. 50,000 per month
- Below 99.0% to 98.0%: Rs. 1,00,000 per month
- Below 98.0%: Rs. 2,00,000 per month

6.3 Response Time Penalty: Rs. 5,000 per hour of delay beyond the stipulated response time for critical faults.

6.4 Resolution Time Penalty: Rs. 10,000 per day of delay beyond stipulated resolution time for critical faults.

6.5 Maximum Penalty Cap: Total liquidated damages in any contract year shall not exceed 10% of the annual contract value (Rs. 8,00,000 per year).

6.6 These Liquidated Damages represent a genuine pre-estimate of loss and not a penalty.

7. TIMELINES

7.1 Commencement: Services shall commence within 30 days of signing this Agreement.

7.2 Delivery Timeline: Vendor shall mobilize team and deploy all tools within 30 days from date of Purchase Order.

7.3 Installation Timeline: All monitoring software and remote access tools shall be installed and operational within 45 days of contract commencement.

7.4 Warranty Period: All repaired or replaced equipment shall carry a warranty of 12 months from the date of repair or replacement.

7.5 Defect Liability Period (DLP): 12 months from the date of contract completion or expiry, during which the Vendor shall rectify all defects at no additional cost to the Employer.

8. VENDOR QUALIFICATION CRITERIA

8.1 Minimum Annual Turnover: The Vendor shall have a minimum average annual turnover of Rs. 5 Crores over the last 3 financial years.

8.2 Minimum Experience: The Vendor shall have minimum 5 years of experience in providing similar IT infrastructure maintenance services.

8.3 Past Performance: The Vendor shall have successfully completed at least 3 similar projects of value Rs. 50 Lakhs or above in the last 5 years.

8.4 Required Certifications: The Vendor and its key personnel shall possess the following certifications:

- ISO 9001:2015 (Quality Management System)
- ISO 27001:2013 (Information Security Management)
- ITIL Foundation Certification for key personnel
- OEM certifications for major equipment brands

9. LIABILITY AND INDEMNIFICATION

9.1 Vendor Liability: The Vendor shall be liable for damages caused by its negligence, wilful misconduct, or breach of this Agreement.

9.2 Employer Liability: The Employer shall be liable for damages caused by its own negligence, interference, or failure to provide site access.

9.3 Limitation of Liability: Total aggregate liability of either party shall not exceed 100% of the annual contract value in any contract year, except in cases of gross negligence or wilful misconduct.

9.4 Both parties shall indemnify each other against third-party claims arising from their respective acts or omissions.

10. FORCE MAJEURE

10.1 Neither party shall be held liable for failure or delay in performance of obligations under this Agreement due to Force Majeure events including: acts of God, natural disasters, floods, earthquakes, epidemics, pandemics, war, civil unrest, strikes, or any other event beyond reasonable control.

10.2 The party claiming Force Majeure shall notify the other party in writing within 7 days of occurrence of such event.

10.3 If Force Majeure continues for more than 90 days, either party may terminate the Agreement by giving 30 days written notice.

11. TERMINATION

11.1 Termination for Cause: Either party may terminate this Agreement immediately upon written notice if the other party commits a material breach and fails to cure it within 30 days of receiving written notice.

11.2 Termination for Convenience: The Employer may terminate this Agreement by giving 60 days written notice to the Vendor without assigning any reason.

11.3 Vendor Termination Right: The Vendor may terminate this Agreement by giving 90 days written notice if the Employer fails to make undisputed payments for more than 60 days.

11.4 Upon termination, all accrued payment obligations shall be settled within 45 days of the termination date.

12. GOVERNING LAW AND DISPUTE RESOLUTION

12.1 This Agreement shall be governed by the laws of India.

12.2 Disputes shall first be resolved through mutual negotiation within 30 days.
If unresolved, disputes shall be referred to arbitration under the Arbitration and Conciliation Act, 1996.

12.3 Seat of arbitration shall be New Delhi, India.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

For TechServe Solutions Private Limited:

Signature: _____

Name: Rajesh Kumar

Designation: Managing Director

Date: 01/04/2024

For National Infrastructure Development Corporation Limited:

Signature: _____

Name: Priya Sharma

Designation: Chief Procurement Officer

Date: 01/04/2024